TRULEAF FOODS

PRIVATE LIMITED

STANDARD TERMS AND CONDITIONS OF PURCHASE

Domestic procurement | Food ingredients | Processed foods | Packaging | Services

Document No.: TLF/PUR/001
Version: 1.0 | Effective date: [31.10.2026]
Applicable to purchase orders issued by Truleaf Foods Private Limited

DOCUMENT CONTROL

Document title	Standard Terms and Conditions of Purchase
Document number	TRU/PUR/001
Version	1.0 – Initial issue
Document owner	Procurement / Commercial / Quality & Food Safety
Approved by	Board of Directors / authorised signatory
Effective date	31.10.2026
Review	At least annually or upon material legal/business change
Company	Truleaf Foods Private Limited

IMPORTANT APPLICATION NOTE

These are buyer-side standard terms for purchases made by Truleaf Foods Private Limited ("Truleaf" or "Buyer"). They are a drafting template and become contractually binding only when properly incorporated into a Purchase Order, supply agreement or other written contract accepted by the Supplier. Each transaction should identify the goods/services, specification, quantity, price, delivery location, delivery date, payment terms and applicable Incoterms (for international transactions).

CONTENTS

- 1. Definitions
- 2. Interpretation
- 3. Applicability and acceptance
- 4. Order of precedence
- 5. Amendments and changes
- 6. Formation and authority
- 7. Risk of loss
- 8. Product quality and warranties
- 9. Inspection, sampling, audit and rejection
- 10. Packaging, labelling and marking
- 11. Delivery, delay and storage
- 12. Information and documents
- 13. Transfer of ownership and title
- 14. Supplier liability
- 15. Indemnity and insurance
- 16. Replacement and corrective action
- 17. Customer-owned materials and processing
- 18. Statutory and regulatory compliance
- 19. Price, invoices, taxes and payment
- 20. Intellectual property
- 21. Truleaf's liability
- 22. Security and set-off
- 23. Force majeure
- 24. Suspension
- 25. Termination
- 26. Consequences of termination
- 27. Confidentiality
- 28. Food safety, traceability, withdrawal and recall
- 29. Ethical sourcing, labour and environment
- 30. Anti-bribery, sanctions and trade compliance
- 31. Data protection and information security
- 32. Subcontracting and assignment
- 33. Notices and general provisions

- 34. Governing law and dispute resolution
- Schedule 1 – Purchase Order Particulars
- Schedule 2 – Supplier Declaration

1. DEFINITIONS

1.1 Supplier any individual, partnership, company, LLP, body corporate or other entity supplying or agreeing to supply Products or Services to Truleaf.

1.2 Buyer / Truleaf Truleaf Foods Private Limited, a company incorporated under the laws of India, having its registered office at the address stated in the relevant Purchase Order.

1.3 Agreement the contract formed by a Purchase Order accepted by the Supplier, a written supply agreement or other written confirmation issued by Truleaf and accepted by the Supplier, together with these Terms and incorporated schedules/specifications.

1.4 Products food ingredients, raw materials, agricultural commodities, processed fruits and vegetables, coconut products, finished goods, packaging materials, equipment, documents and other goods agreed to be supplied.

1.5 Services processing, packing, testing, inspection, warehousing, transportation, logistics, consultancy or other services stated in the Purchase Order.

1.6 Purchase Order (PO) a written or electronically issued purchase order identifying the Products/Services and relevant commercial and technical particulars.

1.7 Specifications agreed product specifications, quality standards, samples, drawings, labels, packaging requirements, test parameters and regulatory/customer requirements forming part of the Agreement.

1.8 Confidential Information all non-public commercial, technical, financial, operational, customer, supplier, product, pricing, formulation, process and business information disclosed by or for a Party.

1.9 Applicable Law all applicable central, state and local laws, rules, regulations, orders, standards, notifications and legally binding directions in force in the relevant jurisdiction.

1.10 Incoterms the Incoterms® rules published by the International Chamber of Commerce, edition expressly identified in the PO or Agreement.

2. INTERPRETATION

2.1 Words in the singular include the plural and vice versa.

2.2 References to a person include an individual, company, partnership, LLP, government authority or other legal entity.

2.3 "Including" and similar expressions are illustrative and do not limit the words preceding them.

2.4 Headings are for convenience only and do not affect interpretation.

2.5 A reference to a statute includes amendments, re-enactments and subordinate legislation in force from time to time.

3. APPLICABILITY AND ACCEPTANCE

3.1 These Terms apply to all requests for quotation, negotiations, POs, supplies and Agreements under which the Supplier provides Products or Services to Truleaf, unless Truleaf expressly agrees otherwise in writing.

3.2 Supplier terms printed on or attached to quotations, acknowledgements, invoices or delivery challans shall not apply to the extent they conflict with these Terms, unless specifically accepted in writing by Truleaf's authorised signatory.

3.3 The Supplier accepts the PO and these Terms by written acknowledgement, commencing performance, dispatching Products or delivering Products/Services, whichever occurs first, subject to Applicable Law.

3.4 Any deviation or amendment is valid only if expressly agreed in writing by an authorised representative of Truleaf.

3.5 These Terms are intended to benefit Truleaf and its permitted successors and assigns.

4. ORDER OF PRECEDENCE

4.1 In case of inconsistency, the following order applies unless the Agreement expressly provides otherwise: (a) specifically negotiated and signed supply agreement; (b) PO, including commercial particulars and expressly incorporated specifications; (c) product/quality specifications and approved drawings; and (d) these Terms.

4.2 A Supplier quotation or acknowledgement shall not override this order unless the deviation is expressly accepted in writing by Truleaf.

5. AMENDMENTS AND CHANGES

5.1 Truleaf may request reasonable changes to quantity, specifications, packaging, delivery schedule or destination by written notice. Any fair adjustment to price or schedule shall be agreed in writing before implementation, except immediate action needed to address food safety or legal risk.

5.2 The Supplier shall not change the manufacturing site, raw material source, formulation, process, packaging material, country of origin or material subcontractor without Truleaf's prior written approval.

5.3 Updated Terms apply to future POs and to existing orders only where expressly agreed or legally permissible.

6. FORMATION OF AGREEMENT AND AUTHORITY

6.1 A Supplier quotation remains open for its stated validity period. A PO issued by Truleaf is an offer to purchase on the PO and these Terms.

6.2 An Agreement is formed when Truleaf receives written acceptance or the Supplier begins performance/dispatches Products, unless the PO requires a signed agreement first.

6.3 Only directors, officers or employees expressly authorised by Truleaf may bind the Company. Material variations must be verified through an authorised Truleaf contact.

6.4 Forecasts, estimates and sample requests do not create minimum purchase commitments unless confirmed in a PO or signed agreement.

7. RISK OF LOSS

7.1 Unless otherwise agreed in the PO, the Supplier bears risk of loss, damage, contamination, deterioration and shortage until delivery at the agreed destination and completion of unloading where included in the Supplier's scope, followed by acceptance under the Agreement.

7.2 For international purchases, risk passes in accordance with the Incoterm, named place/port and edition expressly stated in the PO. If no Incoterm is stated, delivery and risk point must be agreed in writing before dispatch.

7.3 Passing of risk does not itself constitute acceptance or waive rights relating to latent defects, fraud, title or breach of warranty.

8. PRODUCT QUALITY AND WARRANTIES

8.1 The Supplier warrants that Products shall:

- conform to the PO, approved Specifications, samples and descriptions, including identity, grade, variety, composition, quantity, quality and origin;
- be safe, wholesome, genuine, merchantable, fit for the disclosed purpose and free from contamination, adulteration, infestation, foreign matter and defects;
- comply with Applicable Laws in the country of manufacture, dispatch, import, delivery and intended sale/use, to the extent applicable;
- be manufactured, processed, packed, stored and transported under appropriate hygienic conditions and food safety controls;
- not be expired, deteriorated, damaged, substituted or counterfeit, and have the agreed remaining shelf life at delivery;

- be free from liens, charges, security interests and third-party claims, with good and marketable title;
- match approved samples, which shall be representative of the relevant production lot; and
- be accompanied by accurate certificates, declarations and supporting documents required by the Agreement or law.

8.2 Where Products are represented as organic, certified, sustainably sourced, allergen-free, non-GMO or otherwise specially claimed, the Supplier shall hold valid evidence covering the relevant product, site, scope and lot.

8.3 The Supplier shall immediately notify Truleaf of any actual or suspected issue affecting safety, legality, authenticity, quality, origin, certification or shelf life.

8.4 Inspection, testing, payment or resale shall not relieve the Supplier of warranties, including for latent defects or misrepresentation.

9. INSPECTION, SAMPLING, AUDIT AND REJECTION

9.1 Truleaf or its representative may, on reasonable prior notice and during normal working hours, inspect Products, raw materials, production/processing sites, warehouses, records and relevant quality/food safety systems, subject to reasonable site rules.

9.2 The Supplier shall provide reasonable access, assistance, samples, records and facilities. Inspection does not transfer the Supplier's responsibility for conformity.

9.3 Truleaf may draw representative samples before, during or after production/delivery and arrange testing through an appropriate laboratory.

9.4 The Supplier shall provide authenticated copies of certificates of analysis, test reports, inspection reports, health/phytosanitary certificates, organic certificates and other agreed records.

9.5 Truleaf may reject Products that do not conform, are unsafe or unlawful, damaged, materially late where time is essential, or supplied with materially inaccurate or incomplete documents.

9.6 Truleaf shall notify rejection within a reasonable time after discovery, having regard to defect type, inspection opportunity, perishability and Applicable Law. Latent defects may be notified after delivery or initial inspection.

9.7 Rejected Products shall be segregated. Unless otherwise agreed, the Supplier shall promptly collect them at its own cost and risk. Truleaf may arrange safe storage, return, treatment or destruction where necessary and recover reasonable documented costs to the extent attributable to Supplier.

9.8 Inspection, testing, acceptance or payment does not waive Truleaf's rights or remedies.

10. PACKAGING, LABELLING AND MARKING

10.1 Products shall be packed in suitable, clean, intact, food-grade packaging appropriate to product, transport, storage, shelf life and intended use.

10.2 Food-contact packaging shall comply with applicable FSSAI packaging requirements and other applicable standards. Supplier shall provide declarations of compliance or test reports where required.

10.3 Labelling and marking shall comply with applicable FSSAI, Legal Metrology, consumer protection, export-destination and customer requirements, as relevant.

10.4 Each shipment shall carry legible and accurate product name, lot/batch number, net quantity, manufacture/packing date, best-before/use-by date, storage conditions, country of origin and other required declarations.

10.5 Supplier shall not alter, obscure or remove batch codes, origin details, date marks or statutory declarations without prior written approval and legal permissibility.

10.6 Truleaf may reject non-compliant, unsuitable, damaged or misleading packaging/labelling, subject to law.

11. DELIVERY, DELAY AND STORAGE

11.1 Delivery shall be made to the place, date, time, quantity and schedule stated in the PO. Time is of the essence where expressly stated or reasonably required by product shelf life or customer commitment.

11.2 Supplier shall promptly notify Truleaf in writing of anticipated delay, shortage, production issue or transport disruption, stating cause, likely duration and mitigation.

11.3 Partial, excess or split deliveries require prior written approval.

11.4 Supplier shall not substitute Products or change batch allocation or dispatch point without prior written approval.

11.5 If Truleaf cannot accept delivery for reasons not attributable to Supplier, Supplier shall arrange safe storage on request. Reasonable pre-agreed storage costs may be reimbursed if product integrity is maintained.

11.6 For Supplier-attributable delay, Truleaf may require expedited delivery, reject delayed goods where justified, procure substitute goods or exercise other remedies.

11.7 Supplier shall ensure appropriate vehicles, temperature control, hygiene, segregation, pest prevention and transport documents.

12. INFORMATION AND DOCUMENTS

12.1 Supplier shall timely provide information/documents reasonably required for product approval, regulatory compliance, import/export clearance, customs, tax, traceability, quality assurance and sale/use.

12.2 Documents may include commercial invoice, packing list, e-way bill, e-invoice particulars, delivery challan, COA, specification, health/phytosanitary certificate, certificate of origin, fumigation/organic certificate, insurance and transport documents, shipping bill/bill of entry details and declarations, as applicable.

12.3 Supplier warrants information/documents are true, accurate, complete, current and not misleading, and shall promptly correct errors.

12.4 Truleaf may rely on Supplier documents but is not obliged to independently verify every statement; reliance does not waive Supplier responsibility.

13. TRANSFER OF OWNERSHIP AND TITLE

13.1 Unless otherwise stated in the PO, title passes to Truleaf upon the earlier of payment for identified Products or delivery and identification of Products to the PO, free from liens and encumbrances, subject to Applicable Law.

13.2 For advance/milestone payments for identified Products, Supplier shall identify and segregate those Products as Truleaf property, protect them and not sell, pledge, transfer or encumber them.

13.3 Supplier warrants full right and authority to transfer good title and shall provide reasonable evidence on request.

13.4 Risk and title are separate and pass at the times stated in the Agreement and applicable Incoterm.

14. SUPPLIER'S LIABILITY

14.1 Supplier is responsible for loss, damage, cost, claim, penalty or liability to the extent arising from breach, negligence, wilful misconduct, fraud, misrepresentation, infringement, legal non-compliance, defective/unsafe Products or acts/omissions of its personnel or subcontractors.

14.2 Supplier remains responsible for persons engaged by it as if their acts and omissions were its own.

14.3 Nothing limits liability to the extent such limitation is prohibited by Applicable Law.

15. INDEMNITY AND INSURANCE

15.1 Supplier shall indemnify Truleaf, its directors, officers and employees against third-party claims, losses, damages, liabilities, reasonable legal costs, recall/withdrawal costs and expenses to the extent arising from death/injury or property damage caused by Products or Supplier conduct; unsafe/adulterated/contaminated/counterfeit Products; Supplier's breach or legal non-compliance; IP infringement; fraud/bribery; or breach of confidentiality/data protection.

15.2 Truleaf shall notify Supplier of an indemnified claim within a reasonable time. Supplier shall not settle a claim admitting liability for Truleaf or affecting its rights without Truleaf's prior written consent.

15.3 Supplier shall maintain insurance appropriate to its operations, including product/public liability and transit insurance where relevant and commercially available. Evidence shall be provided on request. Insurance does not limit liability.

16. REPLACEMENT, REPAIR AND CORRECTIVE ACTION

16.1 For non-conforming Products/Services, Truleaf may require Supplier, at its cost and within a reasonable time, to replace, repair, reprocess, sort, re-perform or otherwise remedy the issue.

16.2 Where immediate action is required for food safety, customers, legal compliance or continuity, Truleaf may take reasonable containment/corrective action itself or through a third party and recover reasonable attributable costs.

16.3 Supplier shall investigate root cause and submit corrective and preventive action (CAPA) within the requested timeframe.

16.4 Corrective action does not prejudice Truleaf's other contractual or statutory remedies.

17. CUSTOMER-OWNED MATERIALS AND PROCESSING

17.1 Raw materials, ingredients, packaging, artwork, tools, equipment or other property supplied by Truleaf ("Truleaf Materials") remain Truleaf's property unless agreed otherwise.

17.2 Supplier shall identify, segregate, protect and maintain Truleaf Materials and work-in-progress, keep inventory records and use them only for the relevant PO.

17.3 Supplier shall not sell, pledge, transfer, encumber, misuse, mix, substitute or dispose of Truleaf Materials without written approval.

17.4 Supplier is responsible for loss/damage while in its custody/control, except to the extent caused by Truleaf or an agreed inherent loss allowance.

17.5 On request or termination, Supplier shall return unused Truleaf Materials, finished Products, work-in-progress and records.

18. STATUTORY AND REGULATORY COMPLIANCE

18.1 Supplier shall comply with Applicable Laws relevant to Products, Services, manufacture, processing, packaging, storage, transport, import, export and delivery, including laws in origin, transit and destination jurisdictions where applicable.

18.2 For food products, Supplier shall comply with the Food Safety and Standards Act, 2006 and applicable regulations, including licensing, food standards, contaminants, additives, packaging, labelling, hygiene, traceability, recall and import requirements.

18.3 Supplier shall maintain required licences, registrations, permits and approvals and provide copies on request. It shall immediately notify Truleaf of suspension, cancellation, expiry or restriction.

18.4 For imports/exports, Supplier shall provide accurate origin, classification, value, quantity, description, end-use and trade information and cooperate with lawful customs procedures.

18.5 Supplier shall not knowingly supply goods prohibited/restricted in a manner that causes Truleaf to breach Applicable Law.

18.6 Where a destination market or customer standard is specified in the PO, Supplier shall meet it to the extent expressly agreed and applicable.

19. PRICE, INVOICES, TAXES AND PAYMENT

19.1 Price and currency are as stated in the PO. Unless otherwise specified, price includes costs allocated to Supplier, including packing, handling, loading, transport, insurance and duties under the agreed delivery term. GST and other applicable taxes shall be separately shown in a valid tax invoice.

19.2 Supplier shall not increase price or impose additional charges without Truleaf's prior written approval.

19.3 Invoice shall state PO number, description, quantity, applicable HSN/SAC, taxable value, GST rate/amount, place of supply, GSTIN details, bank details and statutory particulars.

19.4 Payment shall be made within the period stated in the PO after receipt of a valid invoice and completion of agreed delivery/acceptance requirements, subject to statutory timelines.

19.5 Where Supplier is a micro or small enterprise covered by the MSMED Act, 2006 and has provided valid Udyam details applicable to the supply, payment is governed by Sections 15–24. Any agreed period shall not exceed forty-five (45) days from acceptance or deemed acceptance, as applicable.

19.6 Supplier shall notify Truleaf of Udyam status and provide its Udyam Registration Number and classification, and notify any change.

19.7 Truleaf may withhold a genuinely disputed portion of an invoice relating to quantity, quality, documentation, tax compliance or performance, while processing undisputed amounts in accordance with law.

19.8 Truleaf may deduct or withhold TDS or other statutory deductions where required and provide applicable certificates.

19.9 Payment does not constitute acceptance of defective Products or waiver of warranty.

20. INTELLECTUAL PROPERTY RIGHTS

20.1 Each Party retains IP owned or developed independently of the Agreement.

20.2 Truleaf's trademarks, logos, artwork, specifications, product concepts, labels, formulations, drawings and materials remain its property and may be used only to perform the Agreement.

20.3 Unless otherwise agreed, IP specifically created for and paid for by Truleaf under a PO shall vest in Truleaf to the extent legally assignable. Pre-existing Supplier materials incorporated into deliverables shall be licensed to Truleaf perpetually and royalty-free to the extent needed for intended business use.

20.4 Supplier warrants that Products/Services do not knowingly infringe third-party IP and shall notify Truleaf of claims.

21. TRULEAF'S LIABILITY

21.1 To the maximum extent permitted by law, Truleaf shall not be liable for indirect, special, incidental, punitive or consequential loss, including loss of profit, anticipated savings, business opportunity or goodwill, except where exclusion is not legally enforceable.

21.2 Truleaf shall be liable for direct loss to the extent caused by its proven breach, negligence or wilful misconduct, subject to Applicable Law and any express liability cap in the PO or signed Agreement.

21.3 No provision excludes liability that cannot lawfully be excluded or limited.

22. SECURITY AND SET-OFF

22.1 Where reasonably justified by transaction nature/value, Truleaf may request reasonable security or performance assurance, to be agreed in writing.

22.2 Truleaf may set off amounts finally determined or admitted to be due from Supplier against payable amounts to the extent permitted by law. This does not override statutory MSMED protections.

22.3 Supplier shall not withhold Truleaf-owned materials, documents or Products as leverage except where a valid legal right permits it.

23. FORCE MAJEURE

23.1 A Party is not liable for failure/delay to the extent caused by an event beyond reasonable control that could not reasonably be prevented or overcome, such as natural disasters, epidemic/pandemic restrictions, war, civil disturbance, government prohibition, port closure or widespread transport interruption.

23.2 Affected Party shall promptly notify the other Party, provide reasonable details, mitigate effects and resume performance as soon as practicable.

23.3 Lack of funds, ordinary price increases, avoidable shortages or failure to obtain routine approvals shall not automatically constitute force majeure.

23.4 If the event continues beyond thirty (30) consecutive days or materially affects perishable/critical supply, either Party may terminate the affected PO by notice, preserving accrued rights and payment for conforming Products accepted.

24. SUSPENSION

24.1 Truleaf may suspend all or part of a PO where Supplier materially breaches, there is reasonable concern about food safety, legality, quality, delivery or financial capability, or suspension is needed to comply with law or protect customers.

24.2 Supplier shall stop affected activity, protect Products and Truleaf Materials, preserve records and follow reasonable instructions.

24.3 Suspension does not waive Truleaf's rights or excuse obligations that continue by nature.

25. TERMINATION

25.1 Truleaf may terminate a PO for convenience by notice stated in the PO or, if none, reasonable written notice. The Parties shall settle payment for conforming Products/Services properly performed and accepted up to termination, subject to agreed cancellation charges, mitigation and law.

25.2 Truleaf may terminate immediately by written notice if Supplier commits a material breach and fails to cure within a reasonable stated period; supplies unsafe, adulterated, counterfeit or materially non-compliant Products; commits fraud/bribery; loses a material licence; becomes insolvent or ceases business; makes material misrepresentation; repeatedly fails quality/delivery; or becomes legally prohibited from performing.

25.3 Supplier shall promptly notify Truleaf of events materially affecting performance, licences, ownership, financial position, manufacturing site or regulatory status.

25.4 Either Party may terminate for continuing force majeure under Clause 23.4.

25.5 Termination is without prejudice to accrued rights/liabilities.

26. CONSEQUENCES OF TERMINATION

26.1 Supplier shall stop work as directed, avoid further costs, protect Products and Truleaf Materials and deliver completed or paid-for Products and documents as instructed.

26.2 Supplier shall return or securely destroy Confidential Information and Company property, subject to mandatory legal retention.

26.3 Truleaf shall pay for conforming Products/Services properly supplied and accepted before termination, subject to lawful deductions and unresolved claims.

26.4 Warranties, liability, indemnity, confidentiality, IP, data protection, dispute resolution and record-retention obligations survive where intended by nature.

27. CONFIDENTIALITY

27.1 Supplier shall keep Confidential Information confidential and use it only to perform the Agreement.

27.2 Disclosure is permitted only to personnel/approved subcontractors who need to know and are bound by confidentiality duties.

27.3 Confidentiality does not apply to information demonstrably public without breach, previously lawfully known, independently developed or lawfully received without restriction.

27.4 Where disclosure is legally required, Supplier shall, where permitted, give prior notice and disclose only what is required.

27.5 On request or termination, Supplier shall return or securely destroy Confidential Information, except copies retained under mandatory law, which remain protected.

27.6 Breach may entitle the affected Party to seek injunctive relief and recover proven losses and remedies under law.

28. FOOD SAFETY, TRACEABILITY, WITHDRAWAL AND RECALL

28.1 Supplier shall maintain a documented food safety/quality system appropriate to the product and operation, including hazard controls, hygiene, allergen management, pest control, cleaning, personnel hygiene, supplier control, storage, transport and process controls, as applicable.

28.2 Supplier shall maintain one-step-back/one-step-forward traceability, lot/batch, raw material, production/packing and dispatch records sufficient to trace Products and relevant inputs.

28.3 Supplier shall immediately notify Truleaf of suspected contamination, adulteration, allergen error, undeclared ingredient, regulatory alert, recall, test failure, authenticity issue or other food safety concern.

28.4 Supplier shall cooperate in risk assessment, investigation, customer communication, regulatory notification, withdrawal, recall, retrieval, replacement and corrective action.

28.5 Where withdrawal/recall is attributable to Supplier breach, negligence or non-conforming Products, Supplier shall bear reasonable documented costs to the extent legally recoverable and attributable to it.

28.6 Supplier shall not issue public statements or contact Truleaf customers on Truleaf's behalf without authorisation, except where legally required; in such event it shall notify Truleaf as soon as permitted.

29. ETHICAL SOURCING, LABOUR AND ENVIRONMENT

29.1 Supplier shall comply with applicable labour, employment, occupational safety, environmental and social welfare laws.

29.2 Supplier shall not use child labour, forced/bonded labour, human trafficking, coercive recruitment or unlawful discrimination and shall maintain lawful wages and conditions.

29.3 Supplier shall provide a safe workplace, training and protective equipment and prevent harassment, abuse, violence and retaliation.

29.4 Supplier shall comply with applicable environmental requirements for waste, emissions, water, chemicals, packaging and pollution control.

29.5 Where relevant, Supplier shall provide evidence of responsible sourcing, origin, producer identity, certification and sustainability/deforestation due diligence required by destination market or PO.

30. ANTI-BRIBERY, SANCTIONS AND TRADE COMPLIANCE

30.1 Supplier shall not offer, pay, request or accept bribes, kickbacks, facilitation payments or improper advantages.

30.2 Supplier shall comply with applicable anti-corruption laws, including the Prevention of Corruption Act, 1988, and relevant foreign laws.

30.3 Supplier shall provide accurate product origin, destination, classification, value, quantity, party, end-use and shipping-route information.

30.4 Supplier shall comply with applicable Indian import/export controls, customs laws, foreign trade requirements and sanctions/export-control restrictions relevant to the transaction.

30.5 Supplier shall promptly notify Truleaf of suspected breach. Truleaf may suspend or terminate the transaction where necessary to comply with law or manage material risk.

31. DATA PROTECTION AND INFORMATION SECURITY

31.1 Each Party shall comply with data protection and information security laws applicable to its processing of personal data under the Agreement.

31.2 Supplier shall use personal data received from Truleaf only for the agreed purpose, restrict access, apply reasonable safeguards and not disclose it except as authorised or legally required.

31.3 Supplier shall promptly notify Truleaf of any actual or suspected data breach/security incident affecting Truleaf information and cooperate in mitigation and legally required notifications.

31.4 Where required, the Parties shall enter into a separate data processing or information security agreement.

32. SUBCONTRACTING AND ASSIGNMENT

32.1 Supplier shall not subcontract or transfer material obligations without Truleaf's prior written consent. Consent does not relieve Supplier of responsibility.

32.2 Supplier remains liable for approved subcontractors and shall ensure they comply with relevant Agreement requirements.

32.3 Neither Party may assign the Agreement without consent, except Truleaf may assign to an affiliate or successor in a merger, restructuring or business transfer, subject to law.

33. NOTICES AND GENERAL PROVISIONS

33.1 Notices shall be in writing and delivered by hand, recognised courier or email to addresses stated in the PO or later notified.

33.2 If a provision is invalid or unenforceable, remaining provisions continue. Parties shall replace it with a valid provision closest to the commercial intent.

33.3 Failure or delay in exercising a right is not a waiver.

33.4 The Agreement and incorporated documents constitute the entire agreement for the PO, superseding prior discussions on the same subject, except in case of fraud/misrepresentation.

33.5 Supplier is an independent contractor; nothing creates partnership, joint venture, employment or agency.

33.6 Electronic execution and counterparts are permitted to the extent recognised by Applicable Law.

34. GOVERNING LAW AND DISPUTE RESOLUTION

34.1 The Agreement and these Terms are governed by the laws of India.

34.2 Parties shall attempt in good faith to resolve disputes through authorised representatives within thirty (30) days after written notice, unless urgent interim relief is required.

34.3 Unresolved disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, as amended. A sole arbitrator shall be mutually appointed; failing agreement, appointment shall be made under the Act.

34.4 The legal seat and venue of arbitration shall be [Insert city, State, India]. Language: English. The award is final and binding, subject to rights under law.

34.5 Courts at [Insert city, State] shall have jurisdiction over interim relief and non-arbitrable matters, subject to the Arbitration Act and Applicable Law.

34.6 Nothing limits the statutory jurisdiction of the Micro and Small Enterprises Facilitation Council or any other statutory forum where applicable, including under the MSMED Act, 2006.

SCHEDULE 1 – PURCHASE ORDER PARTICULARS

Purchase Order number / date
Supplier legal name / address / GSTIN
Supplier Udyam status / number
Product / service description
Specification / revision / approved sample
Quantity / tolerance / unit
Price / currency / taxes
Delivery date / schedule
Delivery location / named port
Incoterm / edition (international orders)
Packaging / labelling requirements
Shelf life / minimum remaining shelf life
Required certificates / documents
Inspection / testing / acceptance criteria
Payment terms
Special conditions / approved deviations
Authorised Truleaf signatory

SCHEDULE 2 – SUPPLIER DECLARATION

The Supplier confirms that it has read and understood these Standard Terms and Conditions of Purchase and agrees to comply with the provisions applicable to the relevant PO. The Supplier confirms that licences, registrations, declarations, product specifications and supporting documents supplied to Truleaf are accurate and valid.

Supplier legal name	
Authorised representative	
Designation	
Signature and company seal	
Date	
Udyam Registration Number (if applicable)	
FSSAI Licence / Registration No. (if applicable)	
GSTIN (if applicable)	

INDICATIVE INDIAN LEGAL FRAMEWORK

Depending on the transaction, products, location and parties, the following laws may be relevant. This list is indicative and not exhaustive:

- Indian Contract Act, 1872 and Sale of Goods Act, 1930.
- Micro, Small and Medium Enterprises Development Act, 2006, particularly Sections 15–24 where the Supplier is an eligible micro or small enterprise.
- Food Safety and Standards Act, 2006 and applicable FSSAI regulations, including licensing, food standards, contaminants, packaging, labelling, recall, import and organic food regulations, as applicable.
- Legal Metrology Act, 2009 and Legal Metrology (Packaged Commodities) Rules, 2011, as amended.
- CGST Act, 2017; IGST Act, 2017; applicable State GST laws and rules.
- Customs Act, 1962; Foreign Trade (Development and Regulation) Act, 1992; Foreign Trade Policy/DGFT notifications; FEMA, 1999 and RBI directions.
- Prevention of Corruption Act, 1988; Competition Act, 2002; applicable anti-money laundering and sanctions requirements.
- Arbitration and Conciliation Act, 1996.

- Applicable labour, occupational health and safety, environmental, packaging-waste and data protection laws.

OFFICIAL REFERENCE LINKS

- FSSAI – Food Safety and Standards Act: https://fssai.gov.in/food-law/act-2006
- FSSAI – Regulations: https://www.fssai.gov.in/food-law/regulations
- FSSAI – Food Imports: https://www.fssai.gov.in/business/import
- India Code – Sale of Goods Act, 1930: https://www.indiacode.nic.in/bitstream/123456789/2390/1/193003.pdf
- India Code – Arbitration and Conciliation Act, 1996: https://www.indiacode.nic.in/bitstream/123456789/1978/1/a1996-26.pdf
- MSME – Delayed Payment framework: https://ramp.msme.gov.in/ramp/RAMP-initiative/msme-samadhaan/msme-samadhaan
- Department of Consumer Affairs – Legal Metrology: https://consumeraffairs.gov.in/pages/legal-metrology-act
- DGFT – Foreign Trade Act, 1992: https://content.dgft.gov.in/Website/om199.htm

IMPLEMENTATION AND LEGAL REVIEW

Before issue, Truleaf should insert its registered office address, CIN and authorised contacts; decide the arbitration seat and court jurisdiction after legal review; approve the document through the appropriate Company authority; align PO templates, supplier onboarding, specifications, inspection and rejection procedures; define payment periods and verify supplier Udyam status; ensure import/export orders state the correct Incoterm, named place/port and edition; and obtain review from an Indian commercial lawyer.

This document is a commercial drafting template, not a legal opinion. It does not guarantee enforceability in every transaction or jurisdiction. The terms of each signed Agreement, mandatory statutory provisions and transaction-specific facts will prevail where required by law.